

Multiple Choice

1. **Answer:** B

Options: A) A supervening event.; B) That was reasonably foreseeable at time of contract formation.; C) Which completely or almost completely destroys the purpose of the contract.; D) The purpose of the contract was understood by both parties.

Note: The correct answer is that foreseeability at the time of contract formation is not required for discharge due to frustration of purpose, as this doctrine primarily focuses on whether an unforeseen event undermines the contract's foundational purpose, rather than what was foreseeable at the outset.

2. **Answer:** C

Options: A) The proceedings are conducted in secret.; B) There is no right to counsel.; C) There is a right to Miranda warnings.; D) There is no right to have evidence excluded.

Note: The correct answer is based on the fact that Miranda warnings are not required in grand jury proceedings because individuals are not considered to be in custody or subject to interrogation, which is the context in which Miranda rights are applicable.

3. **Answer:** A

Options: A) The law is necessary to achieve a compelling government purpose.; B) The law is substantially related to an important government purpose.; C) The law is rationally related to a legitimate government purpose.; D) The law is substantially related to a legitimate government purpose.

Note: The law must be necessary to achieve a compelling government purpose because constitutional scrutiny, particularly under strict scrutiny, requires that any law infringing on fundamental rights must serve a significant governmental interest and be narrowly tailored to achieve that interest.

4. **Answer:** A

Options: A) An implied-in-fact contract.; B) An implied-in-law contract.; C) An express contract.; D) No contract.

Note: The correct answer is an implied-in-fact contract because the acceptance of legal services by the client creates an assumption of a mutual agreement regarding compensation, even in the absence of a formal fee agreement.

5. **Answer:** D

Options: A) Weapons or implements; B) marks, scars, wounds; C) Photographs; D) Hearsay

Note: Hearsay is not considered a correct form of real evidence because it is based on secondhand accounts rather than direct observations or experiences, which undermines its reliability and admissibility in court.

True / False

6. **Answer:** True

Options: A) True; B) False

Note: A bill of attainder is considered unconstitutional under Article I, Section 9 of the U.S. Constitution because it allows the legislature to impose punishment on specific individuals without the due process of a judicial trial, thereby circumventing the safeguards of the legal system.

7. **Answer:** True

Options: A) True; B) False

Note: A contract may be discharged for frustration of purpose without requiring that the supervening event was foreseeable at formation because the doctrine of frustration of purpose is based on the unanticipated failure of the underlying purpose of the contract rather than the foreseeability of the event itself.

8. **Answer:** True

Options: A) True; B) False

Note: A defendant charged with first-degree murder is entitled to receive a list of prospective jurors upon request as part of their constitutional right to a fair trial, which includes the ability to examine the jury pool for potential biases or conflicts of interest.

9. **Answer:** True

Options: A) True; B) False

Note: Partial performance of a contract does not terminate it by operation of law because the law generally requires full performance or mutual agreement to modify or terminate a contract, thus allowing the contract to remain enforceable despite incomplete execution.

10. **Answer:** False

Options: A) True; B) False

Note: A discriminatory effect alone is insufficient to prove intent to discriminate because intent requires evidence of purpose or motivation behind the government's actions, rather than just the outcome of those actions.

Long Form Response

11. **Answer:** The enforcement provision of Section 2 of the Thirteenth Amendment grants Congress the authority to enact legislation aimed at eradicating slavery and involuntary servitude, which has been interpreted to extend to addressing the vestiges of racial discrimination. This constitutional foundation supports Congress's recent statute prohibiting racial discrimination in real estate transactions, as such discrimination perpetuates economic inequality and social disenfranchisement akin to the effects of slavery. By framing racial discrimination in housing as a form of involuntary servitude, Congress

can utilize its enforcement powers to promote equality and protect civil rights, reinforcing the Thirteenth Amendment's commitment to dismantling systemic oppression. Thus, the statute serves as a modern application of Congressional authority to combat racial discrimination, guided by the historical context of the amendment.

Note: correct because it articulates how Section 2 of the Thirteenth Amendment empowers Congress to legislate against racial discrimination in real estate, framing such discrimination as a modern manifestation of the economic and social inequalities that the Amendment seeks to eliminate.

12. **Answer:** Compensatory damages play a crucial role in contract law as they serve to financially restore the nonbreaching party to the position they would have occupied had the contract been fully performed. These damages are intended to cover the actual loss suffered due to the breach, including lost profits and any consequential damages that arise directly from the nonperformance of the contract. By focusing on the principle of restitution, compensatory damages ensure that the nonbreaching party is not unjustly enriched or left in a worse position as a result of the breach. This legal remedy underscores the importance of contractual obligations and seeks to uphold the integrity of agreements by providing a tangible means of redress for those affected. Thus, compensatory damages reflect a fundamental aspect of contract enforcement, aiming to balance the interests of both parties involved.

Note: correct because it accurately describes how compensatory damages aim to financially restore the nonbreaching party to their pre-breach position by covering actual losses and ensuring they do not suffer from the breach of contract.